muſt have a licence from the king to purchaſe[y], before they can exert that capacity which is veſted in them by the common law: nor is even this in all caſes ſufficient. Theſe ſtatutes are generally called the ſtatutes of *mortmain*; all purchaſes made by corporate bodies being ſaid to be purchaſes in mortmain, *in mortua manu:* for the reaſon of which appellation ſir Edward Coke[z] offers many conjectures; but there is one which ſeems more probable than any that he has given us: viz. that theſe purchaſes being uſually made by eccleſiaſtical bodies, the members of which (being profeſſed) were reckoned dead perſons in law, land therefore, holden by them, might with great propriety be ſaid to be held *in mortua manu.*

I SHALL defer the more particular expoſition of theſe ſtatutes of mortmain, till the next book of theſe commentaries, when we ſhall conſider the nature and tenures of eſtates; and alſo the expoſition of thoſe diſabling ſtatutes of queen Elizabeth, which reſtrain ſpiritual and eleemoſynary corporations from aliening ſuch lands as they are preſent in legal poſſeſſion of: only mentioning them in this place, for the ſake of regularity, as ſtatutable incapacities incident and relative to corporations.

THE general *duties* of all bodies politic, conſidered in their corporate capacity, may, like thoſe of natural perſons, be reduced to this ſingle one; that of acting up to the end or deſign, whatever it be, for which they were created by their founder.

III. I PROCEED therefore next to enquire, how theſe corporations may be *viſited.* For corporations being compoſed of individuals, ſubject to human frailties, are liable, as well as private perſons, to deviate from the end of their inſtitution. And for that reaſon the law has provided proper perſons to viſit, enquire into, and correct all irregularities that ariſe in ſuch corporations, either

[y] By the civil law a corporation was incapable of taking lands, unleſs by ſpecial privilege from the emperor: *collegium, ſi nullo ſpeciali privilegio ſubnixum ſit, haereditatem capere non poſſe, dubium non eſt.* *Cod.* 6. 24. 8.

[z] 1 Inſt. 2.